



CHAPTER x.

An Act to confirm certain Provisional Orders of A.D. 1928.
the Minister of Health relating to Brighton
Llanelly Saint Asaph Joint Hospital District
St. Helens Skelmersdale and Wallingford and
Crowmarsh Joint Hospital District.

[10th May 1928.]

WHEREAS the Minister of Health has made the
Provisional Orders set forth in the schedule hereto
under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders
should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health
Provisional Orders Confirmation (No. 1) Act 1928.

Short title.

A.D. 1928.

SCHEDULE.

COUNTY BOROUGH OF BRIGHTON.

*Brighton
Order.*

Provisional Order for amending certain local Acts.

WHEREAS the County Borough of Brighton is an urban sanitary district of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875;

And whereas under certain local Acts and Orders the Corporation carry on a water undertaking and supply water within the whole or a portion of the Boroughs and Districts which as they now exist are mentioned in the Schedule to this Order and the charges which the Corporation are authorised to make for the supply of water for domestic purposes are governed by the following local Acts and Orders namely the Brighton Hove and Preston Constant Service Waterworks Act 1854 the Shoreham and District Waterworks Act 1870 the Brighton Corporation Waterworks Act 1872 the Brighton Corporation Water Act 1896 the Brighton Order 1926 (confirmed by the Ministry of Health Provisional Orders Confirmation (No. 4) Act 1926) and the Brighton Water (Modification of Charges) Order 1923 made by the Minister of Health in pursuance of his powers under the Water Undertakings (Modification of Charges) Act 1921 (all of which Acts and Orders are hereinafter referred to as "the Local Acts and Orders");

And whereas under the Local Acts and Orders the water rates and charges are based on the rateable value or net annual value of the premises supplied;

And whereas on the first day of April one thousand nine hundred and twenty-eight the boundary of the County Borough will be altered by the Brighton Corporation Act 1927 and the first new valuation list under the Rating and Valuation Act 1925 for the Borough as so altered will come into force on that day but the first new valuation lists under the Rating and Valuation Act 1925 in the other areas supplied with water by the Corporation will not come into force until the first day of April one thousand nine hundred and twenty-nine;

And whereas by Article 27 of the Brighton and Hove (Outfall Sewers) Order 1924 (hereinafter referred to as "the

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Order of 1924 ") which was confirmed by the Ministry of Health Provisional Orders Confirmation (No. 5) Act 1924 it is provided that the constituent authorities of the Brighton Intercepting and Outfall Sewers Board shall contribute to the common fund of that Board in proportion to the rateable value of each constituent area;

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—
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Order.

And whereas by Section 58 of a local Act of the sixth year of the reign of His late Majesty King George the Fourth intituled "An Act for the better regulating paving improving " and managing the Town of Brighthelmston in the County of " Sussex and the Poor thereof " (hereinafter referred to as " the Act of 1825 ") occupiers of premises within the Borough are required to sweep and cleanse the adjoining footways and pavements;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to amend the Local Acts and Orders in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from the date of the Act of Parliament confirming this Order the Local Acts and Orders shall be amended in manner following that is to say :—

1. The following provisions shall have effect in relation to the County Borough of Brighton as altered by the Brighton Corporation Act 1927 (in this Article called "the County Borough ") and to hereditaments therein :—

Rateable
value of
premises for
water
charges and
expenses of
Sewers
Board.

- (1) For the purposes of the provisions of the Local Acts and Orders regulating the charges to be made for a supply of water by the Corporation the expressions "rateable value" and "net annual value" shall in respect of the financial year commencing on the first day of April one thousand nine hundred and twenty-eight be deemed to mean—

(a) in the case of any hereditament appearing in a valuation list in force on the thirty-first day of March one thousand nine hundred and twenty-eight the rateable value of that hereditament as appearing in that list; and

(b) in the case of any hereditament appearing in a valuation list for the first time after the said date three-fourths of the rateable value of that hereditament as appearing in that list :

- (2) For the purposes of Article 27 of the Order of 1924 the rateable value of the County Borough shall during the financial year commencing on the first day of April

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—
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one thousand nine hundred and twenty-eight be deemed to be the aggregate of the rateable values of hereditaments within the County Borough ascertained in accordance with paragraph (1) of this Article.

Repeal of section
of Act of 1825.

2. Section 58 of the Act of 1825 is hereby repealed.

Short title.

3. This Order may be cited as the Brighton Order 1927.

SCHEDULE.

The County Borough of Brighton.

The Municipal Borough of Hove.

The Urban District of Portslade-by-Sea.

The Urban District of Shoreham-by-Sea.

The Urban District of Southwick.

The Rural District of Newhaven.

The Rural District of Steyning East.

The Rural District of Steyning West.

Given under the Official Seal of the Minister of Health this
Thirtieth day of December One thousand nine hundred
and twenty-seven.

(L.S.)

E. TUDOR OWEN
Assistant Secretary Ministry of Health.

BOROUGH OF LLANELLY.

*Llanelly
Order.*

*Provisional Order for altering the Llanelly Corporation
Water Act 1920 and the Ministry of Health Provisional
Orders Confirmation (No. 2) Act 1925.*

WHEREAS the Borough of Llanelly (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban Authority for the purposes of the Public Health Act 1875 and there are in force in the Borough the provisions of the Llanelly Corporation Water Act 1920 (hereinafter referred to as "the Local Act") as altered by the Llanelly Order 1924 (hereinafter referred to as "the Order of 1924") which was confirmed by the Ministry

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of Health Provisional Orders Confirmation (No. 2) Act 1925 A.D. 1928.
 (hereinafter referred to as "the Act of 1925");

And whereas by Section 10 of the Local Act a period of five years from the Sixteenth day of August One thousand nine hundred and twenty was limited for the completion of the new works authorised by that Act;

*Llanelly
Order.*

And whereas by the Order of 1924 it was provided that the said section should have effect as if the words "eight years" had been inserted therein instead of the words "five years";

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order further to amend the Local Act in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders as follows:—

1. Section 10 (Period for completion of new works) of the Local Act shall have effect as if the words "thirteen years" had been inserted therein instead of the words "five years."

Extension
of time for
completion
of works.

2. The Act of 1925 so far as it confirms the Order of 1924 is hereby repealed.

Repeal of
Provisional
Order.

3. This Order may be cited as the Llanelly Order 1927 and the Llanelly Water Acts 1865 to 1920 and this Order may be cited together as the Llanelly Water Acts and Orders 1865 to 1927.

Short title.

Given under the Official Seal of the Minister of Health
 this Sixth day of January One thousand nine hundred
 and twenty-eight.

(L.S.)

A. B. MACLACHLAN
 Assistant Secretary Ministry of Health.

SAINT ASAPH JOINT HOSPITAL DISTRICT.

*Provisional Order for forming a United District under
 Section 279 of the Public Health Act 1875.*

*Saint Asaph
Order.*

WHEREAS the authorities named in column 2 of the First Schedule to this Order being the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule have made application to the Minister of Health for the issue of a Provisional Order forming those Districts into a United District for the purpose of the

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A.D. 1928. provision maintenance and management of hospitals for the reception of cases of infectious diseases other than smallpox :

Saint Asaph Order.

Now therefore the Minister of Health in pursuance of the powers given to him by Section 279 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows viz. :—

Definitions.

1. In this Order unless the context otherwise requires—

“Constituent Authority” means an authority named in column 2 of the First Schedule to this Order;

“Constituent District” means a district named in column 1 of that Schedule;

“United District” means the united district formed by this Order;

“Assessable value” in relation to a Constituent District means :—

(i) Until the date on which the first new valuation list to be made under Part II of the Rating and Valuation Act 1925 comes into force in that district the total net annual value of that district reduced by seventy-five per centum of the net annual value of agricultural land in the district; and

(ii) on and after that date the total rateable value of that district;

“The appointed day” means the date of the Act of Parliament confirming this Order;

“The Joint Board” means the governing body of the United District formed by this Order;

“The Minister” means the Minister of Health.

Short title and commencement.

2. This Order may be cited as the Saint Asaph Joint Hospital Order 1927 and shall come into operation on the appointed day.

Formation of United District.

3. The Constituent Districts shall be formed into a United District to be called the Saint Asaph Joint Hospital District for the purposes of the provision maintenance and management for the use of the inhabitants of the Constituent Districts of hospitals for the reception of cases of infectious diseases other than smallpox.

Constitution of governing body.

4. The Joint Board shall consist of five ex-officio members and twenty-four elective members and shall be called the Saint Asaph Joint Hospital Board.

Ex-officio and elective members.

5. The ex-officio members shall be the persons described in column 3 of the First Schedule to this Order and the elective members shall be elected by the Constituent Authorities.

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6. The number of members of the Joint Board to be elected by each Constituent Authority shall be the number set opposite the name of the Constituent Authority in column 4 of the First Schedule to this Order and that number of members of the Joint Board shall be chosen by the Constituent Authority from among their own members.

Saint Asaph
Order.

Number and
 qualifica-
 tion of
 elective
 members.

7. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks after the appointed day or within such further time as the Minister may allow and three days' previous notice in writing of the meeting shall be given or sent to each member of the Constituent Authority by the clerk to that Authority.

Date of
 first election.

8. The clerk to each Constituent Authority shall notify in writing to the Minister within seven days after the first election has taken place the name address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board.

Notifica-
 tion to
 Minister of
 members
 first elected.

9.—(1) Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks after the occurrence of the vacancy or within such further period as the Minister may allow.

Supply of
 vacancies.

(2) The clerk to the Constituent Authority shall forthwith notify in writing to the clerk to the Joint Board the name address and occupation of any person elected in pursuance of this Article to fill a vacancy.

10.—(1) An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority by whom he was elected or otherwise becomes disqualified or until he becomes ex-officio a member of the Joint Board.

Tenure of
 office of
 members.

(2) Any elective member of the Joint Board who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or by ceasing to be a member of the Constituent Authority by whom he was elected shall be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

11. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to the disqualification for being elected or being a member of the council of a district other than a borough and to absence from meetings of any such council shall with the necessary modifications extend to disqualification for being elected or being a member of the Joint Board and to absence from meetings of the Joint Board.

Disqualifica-
 tion for
 membership
 of Joint
 Board and
 absence from
 meetings.

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Meetings.

12.—(1) The first meeting of the Joint Board shall be held at such time and at such place as may be fixed by the Minister.

(2) Subsequent meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board four members shall constitute a quorum.

(3) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(4) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at an extraordinary meeting of the Joint Board.

(5) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board may direct.

Chairman.

13. The Joint Board shall from time to time appoint one of their number to be chairman for one year at all meetings at which he is present.

Committees.

14.—(1) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval :

Provided that a committee so appointed shall not be authorised to borrow money or to issue any precept for contributions or to enter into any contract.

(2) The provisions of Part Four of the First Schedule to the Local Government Act 1894 so far as those provisions are applicable shall extend to any committee appointed in pursuance of this Article by the Joint Board.

Appoint-
ment and
remunera-
tion of
officers.

15.—(1) The Joint Board shall appoint a treasurer and a clerk and the Joint Board may appoint one or more medical officers who shall be registered medical practitioners and such other officers and servants as they think requisite.

(2) The Joint Board may pay their treasurer clerk medical officers and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk medical officer and other officer and servant shall be removable by the Joint Board at their pleasure.

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16. The Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an urban district council under the enactments in the Public Health Acts mentioned in the Second Schedule to this Order and those enactments shall extend to the Joint Board with such modifications as may be necessary to make them applicable to the Joint Board and to the United District :

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 Application
 of enact-
 ments in
 Second
 Schedule.

Provided that Section 258 of the Public Health Act 1875 as applied by this Article shall be modified by the substitution of "Constituent Authority" for "local authority" and "the Joint Board" for "such authority."

17.—(1) Regulations of the Minister under Section 130 or Section 134 of the Public Health Act 1875 as extended by any other enactment may provide for the execution thereof by the Joint Board in relation to the whole or any part of the United District formed by this Order and if the Joint Board shall be charged with the carrying out of regulations under the Section last-mentioned the Epidemic and other Diseases Prevention Act 1883 shall apply to the Joint Board as that Act applies to a local authority in England.

Regulations
 of Minister
 under
 sections 130
 and 134 of
 Public
 Health Act
 1875.

(2) Save as provided in regulations of the Minister under any enactment mentioned in this Article nothing in this Order shall affect any powers or duties exerciseable by or imposed upon any Constituent Authority by regulations of the Minister under any such enactment.

18.—(1) Persons shall be admitted into a hospital provided by the Joint Board in one of the following modes and not otherwise except with the consent of the Constituent Authorities viz. :—

Mode of
 admission
 into
 hospitals.

- (a) By an order of the Joint Board or of a Constituent Authority;
- (b) By an order of a medical officer of health of a Constituent Authority;
- (c) By an order of a medical officer appointed by the Joint Board; or
- (d) By an order of a justice made under the provisions of Section 124 of the Public Health Act 1875 with the consent required by that Section.

(2) The board of guardians of any poor law union wholly or in part comprised within the district of the Joint Board may by agreement with the Joint Board provide for the reception into a hospital provided by the Joint Board of persons in receipt of relief from such board of guardians and any such person may be admitted into the hospital in the manner and on the terms prescribed by the agreement.

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Expenses of
Joint Board.

19.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which shall be paid the sums recovered by the Joint Board from or repaid to the Joint Board by or for patients.

(2) To the common fund so far as the same is not provided by the payments aforesaid each Constituent Authority shall contribute in the proportion which the assessable value of each of the Constituent Districts according to the valuation lists in force on the First day of April and the First day of October preceding the issue of the precept of the Joint Board bears to the aggregate of the assessable values of the Constituent Districts according to the same valuation lists.

Calculation
and payment
of cost of
maintenance
of patients.

20.—(1) The cost of maintenance of patients shall be ascertained in accordance with the rules hereinafter set forth namely :—

(a) Within twenty-one days after the Thirty-first day of March and the Thirtieth day of September in each year the Joint Board shall ascertain the proportionate part of the total cost of the maintenance of the several patients who have been in the hospital during the previous half-year which will represent the average daily cost in respect of each patient;

(b) The cost of maintenance of patients shall include all the expenses incurred in and about the maintenance and care of the patients in the hospital and in and about their medical treatment and in and about their clothing and conveyance to and from the hospital and if any patient dies in the hospital the cost of the funeral and burial and shall also include during any day on which a patient has been in the hospital the remuneration and rations of temporary nurses but shall not include the cost of the repairs to the hospital or to the fittings and furniture thereof or the salaries remuneration or rations of the officers or servants other than temporary nurses.

(2) The clerk to the Joint Board shall within twenty-eight days after the Thirty-first day of March and the Thirtieth day of September in each year transmit to the clerk to each Constituent Authority an account showing in respect of each patient received during the previous half-year into the hospital from the district of that authority after deducting any sum recovered by the Joint Board from or repaid to the Joint Board by or for that patient—

(a) the name and address of the patient;

(b) the number of days in the half-year during which the patient has remained in the hospital; and

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(c) the amount calculated according to the rules in subdivision (1) of this Article set forth and claimed as being due from the Constituent Authority.

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(3) The amount shown by the said account to be due shall be paid by the Constituent Authority from whose district the patient has been received into the hospital and shall be included in any precept which the Joint Board issue to the Constituent Authority under Section 284 of the Public Health Act 1875 stating the sums to be contributed by the Constituent Authority towards the common fund of the United District and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

21. A copy of Section 132 of the Public Health Act 1875 and of Section 60 of the Public Health Acts Amendment Act 1907 shall be exhibited in a conspicuous place at the principal entrance of any hospital provided by the Joint Board.

Notice of provisions as to recovery of cost of maintenance.

22. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription free of charge by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by that Authority for that purpose.

Inspection of accounts.

23. A copy of the abstract of the accounts of the Joint Board and of any report made by the auditor to the Joint Board shall be sent by the Joint Board to each Constituent Authority as soon as may be after the completion of the audit.

Abstract of accounts and auditor's report.

24.—(1) If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board the Minister may by order to be published as he may direct provide for the adaptation of this Order to the altered circumstances.

Power of Minister to adapt this Order on alteration of a Constituent District &c.

(2) If at any time it shall appear to the Minister that the assessable value of any Constituent District has so increased as to render the representation of the Constituent Authority on the Joint Board inadequate the Minister may by Order to be published as he shall direct provide for the appointment of an additional member or members to the Joint Board by such authority.

25. Subject to the provisions of this Order any difference arising hereunder shall be referred to arbitration in the manner

Settlement of differences.

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A.D. 1928. provided by the Public Health Act 1875 the provisions of which shall apply with the necessary modifications to any arbitration under this Article as if the Joint Board or a Constituent Authority (as the case may be) were a party within the meaning of those provisions.

—
Saint Asaph
Order.

Saving for
powers of
Constituent
Authorities.

26. Until a hospital provided by the Joint Board is ready for the reception of patients nothing in this Order shall affect any power vested in any Constituent Authority with regard to the provision of hospitals for the use of the inhabitants of their district.

THE FIRST SCHEDULE.

CONSTITUENT DISTRICTS CONSTITUENT AUTHORITIES AND
NUMBER OF ELECTIVE MEMBERS.

1.	2.	3.	4.
Name of District.	Name of Authority.	Ex-officio Members.	Elective Members.
		Description.	Number.
The Borough of Denbigh.	The Mayor Aldermen and Burgesses of the Borough of Denbigh acting by the Council.	The Mayor or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Deputy-Mayor.	4
The Urban District of Abergale and Pensarn.	The Urban District Council of Abergale and Pensarn.	The Chairman of each District Council or in the event of his being unwilling to act then the Vice - Chairman of the District Council.	2
The Urban District of Prestatyn.	The Urban District Council of Prestatyn.		4
The Rural District of Saint Asaph (Denbigh).	The Rural District Council of Saint Asaph (Denbigh).		7
The Rural District of Saint Asaph (Flint).	The Rural District Council of Saint Asaph (Flint).		7

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THE SECOND SCHEDULE.

A.D. 1928.

Saint Asaph
Order.

ENACTMENTS APPLIED TO THE JOINT BOARD.

Session and Chapter.	Short Title.	Enactments Applied.	Subject-matter.
38 & 39 Vict. c. 55.	The Public Health Act 1875.	Sections 122 123 and 131. Section 132 (as amended by Section 60 of the Public Health Acts Amendment Act 1907). Sections 173 and 174 except subsection (3) of Section 174. Sections 175 to 177 - Sections 179 to 181 - Sections 192 to 197 - Section 205 - - Sections 245 and 247 (as amended by the District Auditors Act 1879 Section 58 of the Local Government Act 1894 and the Finance Act 1921). Section 249 - - Section 250 - - Sections 251 253 254 258 to 262 and 265 to 267. Section 269 (as amended by the Summary Jurisdiction Act 1884). Section 298 - - Section 306 (as amended by Section 48 of the Public Health Acts Amendment Act 1890). Section 307 - - Section 308 - - Section 309 - -	Infectious diseases and hospitals. Recovery of cost of maintenance in hospital. Contracts. Purchase and letting of lands. Arbitration. Officers and offices. Attendance of inspectors at meetings. Audit of accounts. Taxation of bills of costs. Accounts of officers. Legal proceedings notices &c. Appeal to quarter sessions. Costs of Provisional Orders. Penalty on obstructing execution of the Act &c. Penalty on damaging works &c. Compensation in case of damage by local authority. Compensation to officers.

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 —
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Order.

Session and Chapter.	Short Title.	Enactments Applied.	Subject-matter.
47 & 48 Vict. c. 74.	The Public Health (Officers) Act 1884.	The whole Act -	Restriction on recovery of penalties.
48 & 49 Vict. c. 53.	The Public Health (Members and Officers) Act 1885.	Sections 1 and 2 -	Amendment of Section 193 of the Public Health Act 1875.

Given under the Official Seal of the Minister of Health
 this Third day of October One thousand nine hundred
 and twenty-seven.

(L.S.)

E. H. RHODES
 Assistant Secretary Ministry of Health.

BOROUGH OF ST. HELENS.

St. Helens
Order.

*Provisional Order for partially repealing and altering
 certain Local Acts.*

WHEREAS the Borough of St. Helens (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875 and the unrepealed provisions of the St. Helens Improvement Act 1869 the St. Helens Corporation Act 1893 the St. Helens Corporation Act 1898 the St. Helens Corporation Act 1911 and the St. Helens Corporation Act 1921 (hereinafter referred to collectively as "the Local Acts" and separately as the Acts of the year in which they were passed) are in force in the Borough;

And whereas the Corporation have made new byelaws with respect to new streets and buildings the subject-matter of which is cognate to the subject-matter of certain of the said unrepealed provisions;

And whereas the Corporation have accordingly made application to the Minister of Health for the issue of a Provisional Order partially to repeal and alter the Local Acts in the manner hereinafter set forth:

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Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of any other powers in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say:—

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*St. Helens
Order.*

1. The provisions of the Local Acts specified in the Schedule to this Order shall be repealed.

Repeal of
sections of
Local Acts.

2.—(1) Section 45 (Further provision as to intersecting streets) of the Act of 1911 shall be altered and have effect as if the words “as amended by section 76 of the Act of 1898” were omitted therefrom.

Amending
Local Act
provisions.

(2) Section 46 (Extension of section 125 of Act of 1869) of the Act of 1911 shall have effect as if the following provision were substituted for subsection (1) thereof:—

“(1) No building built or rebuilt since the twelfth day of July one thousand eight hundred and sixty-nine which is used or intended to be used for human habitation shall be or continue to be let or (where the owner is the occupier) occupied unless it has an open space in accordance with the requirements of the byelaws for the time being in force with respect to open spaces for new domestic buildings. Provided that this Section shall not require the provision of more open space than was provided in connection with the same building on the First day of August one thousand nine hundred and twenty-eight.”

3. This Order may be cited as the St. Helens Order 1928.

Short title.

THE SCHEDULE.

Local Acts.	Sections repealed.
The St. Helens Improvement Act 1869.	Section 124 (Rules as to erection &c. of dwelling-houses). Section 125 (Back yards to new buildings). Section 126 (Buildings and dwelling-houses not to be converted so as to provide dwellings in contravention of byelaws as to dwellings erected after commencement of Act). Section 127 (Size of areas of courts alleys &c.). Section 128 (Level of ground floor).

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A.D. 1928.	Local Acts.	Sections repealed.
<i>St. Helens Order.</i>	The St. Helens Improvement Act 1869— <i>cont.</i>	Section 129 (Only one storey in roof). Section 134 (Regulations as to external walls). Section 136 (Prohibition of thatch). Section 141 (Corporation may make bye-laws as to new streets buildings &c.). Section 142 (Plans &c. to be deemed approved if Corporation neglect to notify the contrary). Section 163 (All sewers &c. to be covered with traps).
	St. Helens Corporation Act 1893.	Section 60 (Entrances to courts &c. not to be closed &c. without consent of Corporation). Section 66 (As to space about old buildings). Section 71 (Power of surveyor on inspecting).
	St. Helens Corporation Act 1898.	Section 69 (Amendment of section 124 of the Local Act of 1869). Section 76 (Amendment of section 54 of the Local Act of 1893 as to intersecting streets).
	St. Helens Corporation Act 1911.	Section 90 (Reconstruction of drains). Section 40 (Corporation may determine width of carriageway and footway in new streets). Section 41 (Building line in new streets to be shown on plan). Section 56 (As to buildings of iron steel or reinforced concrete). Section 70 (Notice of intention to repair drains). Section 75 (Pipes from slop stones to be disconnected from sewers). Section 76 (Soil-pipes to be ventilated).
	St. Helens Corporation Act 1921.	Section 89 (Width of new streets).

Given under the Official Seal of the Minister of Health
this Thirteenth day of February One thousand nine
hundred and twenty-eight.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF SKELMERSDALE.

A.D. 1928.

*Provisional Order for altering the Southport Birkdale and Skelmersdale
West Lancashire Water Board Act 1907.* *Order.*

WHEREAS the Urban District Council of Skelmersdale (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Skelmersdale (hereinafter referred to as "the District") and the unrepealed provisions of the Southport Birkdale and West Lancashire Water Board Act 1907 (hereinafter referred to as "the Local Act") as altered by the Skelmersdale Order 1915 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1915 are in force in the District; 7 Edw. 7.
c. lxviii.

And whereas by Section 4 of the Local Act the agreement (hereinafter referred to as "the scheduled agreement") made between the Council and the Southport Birkdale and West Lancashire Water Board (hereinafter referred to as "the Water Board") which is set forth in the First Schedule to the Local Act was confirmed and made binding upon the Council and the Water Board;

And whereas by the scheduled agreement it was provided that the Council should sell and the Water Board should purchase for the sum of twenty-two thousand five hundred pounds the waterworks of the Council described in the scheduled agreement and that the Water Board should pay to the Council part of the said sum by way of the execution or issue to the Council of a mortgage or mortgages (hereinafter referred to as "the waterworks mortgages") for the sum of seventeen thousand five hundred pounds and by the scheduled agreement provision was made for the redemption of the waterworks mortgages;

And whereas by Section 11 of the Local Act the Council were authorised to hold the waterworks mortgages or to sell or dispose of the waterworks mortgages and were required to invest the proceeds of any such sale and any sum received by them on the redemption of the waterworks mortgages in statutory securities as by the said section defined until the same should be applied under the provisions of Section 12 of the Local Act;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Local Act in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders 38 & 39 Vict.
c. 55.

[Ch. x.] *Ministry of Health* [18 & 19 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1928.

A.D. 1928.

—
*Skelmersdale
 Order.*

Power to
 borrow on
 security of
 waterworks
 mortgages.

that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say :—

1.—(1) The Council may with the approval of the Minister of Health borrow on the security of the waterworks mortgages any sums which they may require for the purposes of the water supply of the District including the payment of the costs charges expenses and liabilities incurred or to be incurred by the Council in connection with incidental to or in any way relating to the scheduled agreement or any further agreement which may be entered into between the Water Board and the Council relating to the supply of water in bulk or any legal proceedings or arbitration in connection therewith.

Repayment
 of borrowed
 moneys.

(2) The moneys borrowed in pursuance of this Article shall if not previously repaid be repaid out of the principal moneys to be received by the Council on the redemption of the waterworks mortgages.

Modification
 or amendment
 of scheduled
 agreement.

2. The Council and the Water Board may from time to time enter into and carry into effect agreements for the modification and amendment of the scheduled agreement.

Inquiries
 and
 expenses.

3.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary with reference to the purposes of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purpose of inquiries directed by the Minister under the Public Health Act 1875.

(2) Where the Minister of Health causes any such inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Minister in relation to that inquiry (including such sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Council and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Council shall be a debt due to the Crown from the Council.

Short title.

4. This Order may be cited as the Skelmersdale Order 1928.

Given under the Official Seal of the Minister of Health this
 Twenty-seventh day of January One thousand nine
 hundred and twenty-eight.

(L.S.)

E. TUDOR OWEN
 Assistant Secretary Ministry of Health.

WALLINGFORD AND CROWMARSH JOINT
HOSPITAL DISTRICT.

A.D. 1928.

*Provisional Order for altering the Local Government
Board's Provisional Orders Confirmation (No. 8)
Act 1899.*

*Wallingford
and Crow-
marsh Order.*

WHEREAS by virtue of the Wallingford and Crowmarsh Hospital Order 1899 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1899 (which Order and Act are hereinafter referred to respectively as "the Order of 1899" and "the Confirming Act of 1899") the Borough of Wallingford the Rural District of Crowmarsh and the Rural District of Wallingford constitute a United District called the Wallingford and Crowmarsh Joint Hospital District of which the governing body is the Wallingford and Crowmarsh Joint Hospital Board (hereinafter called "the Joint Board");

And whereas by Article 19 of the Order of 1899 provision is made with respect to the proportions in which the Constituent Authorities shall contribute to the common fund of the Joint Board;

And whereas it is expedient that the Order of 1899 should be altered as hereinafter provided :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 297 of the Public Health Act 1875 and by any other statute in that behalf hereby orders as follows :—

1. This Order shall come into operation on the First day of April One thousand nine hundred and twenty-nine and may be cited as the Wallingford and Crowmarsh Hospital Order 1928 and the Order of 1899 and this Order may be cited together as the Wallingford and Crowmarsh Hospital Orders 1899 and 1928.

Date of
operation
and short
title.

2. The following clause shall be substituted for subdivision (2) of Article 19 of the Order of 1899 namely :—

Expenses of
Joint Board.

"(2) The common fund so far as the same is not provided by the aforesaid payments shall be contributed by the Constituent Authorities in proportion to the net annual value of their respective Districts and for the purposes of this provision the net annual value of the said Districts shall mean the net annual value as defined

[Ch. x.] *Ministry of Health* [18 & 19 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1928.

A.D. 1928.

*Wallingford
and Crow-
marsh Order.*

in the Rating and Valuation Act 1925 such net annual value being ascertained from the valuation lists in force on the First day of April prior to the date of the issue of precepts."

Given under the Official Seal of the Minister of Health
this Twenty-first day of February One thousand nine
hundred and twenty-eight.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

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